

File No: EXP202308425

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On April 22, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202308425

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on May 6, 2023. The reasons for the complaint are as follows:

The claimant states that when conducting a search on Google using her name and surname, in the "images" section, a link to aficionis.com is indexed, a website where she registered years ago and from which she wishes to unsubscribe, but indicates that this option is not available.

Relevant documentation provided by the claimant:

- Screenshots of an image of a person who claims to be her and was obtained as a result of the Google search by her name and surname.

SECOND: On June 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), being aware of the following points:

- On June 16, 2023, it was verified that the claimant appears on Google, searching by her name and surname, the provided image appears along with a link to aficionis.com. It was also verified that the page aficionis.com contains the same photograph and a description of her hobbies.

- It has been verified by the Data Inspection that the domain "aficionis.com" has been registered through the French entity OVH SAS. The last update date is recorded as June 27, 2023. Information regarding the ownership of this domain was requested from the Spanish subsidiary OVH HISPANO, S.L. on July 24 and August 29, 2023, without receiving any response. Through IMI (Internal Market Information), a request for collaboration was made to the French data protection authority, which informed on November 23, 2023, that the owner of the domain aficionis.com is B.B.B. with NIF ***NIF.1, residing at ***ADDRESS.1 (hereinafter the respondent).

- On July 24, 2023, the following verifications were carried out by the Data Inspection on the page www.aficionis.com, using the Edge browser:

- o Upon accessing the website, it reports that a PHP error has occurred (the language in which the website has been programmed). It is not possible to scroll to the bottom of the page because another PHP error occurs, and no legal information or privacy policy can be found, with the identification of the data controller and contact information being unknown.

- o The user registration option is not operational.

- o At the top of the page, there is a menu of content options: Sports, motor, culture, travel, training, computing, music, photography, dance, nightlife, and hobbies. Each of these options contains several activities. Accessing one of the activities called "passion for photos" displays a box with 78 images of

people (user profile images), and below a series of comments made by users, indicating the user (Alias) who wrote the comment, their age, and city. There is an option to view the profiles of the users of that activity, which is not operational.

- On November 27, 2023, and January 18, 2024, information was requested from the respondent by the data inspection, receiving responses dated December 27, 2023, and February 17, 2024, in which the following is stated:

- o The website aficionis.com has not been operational for 9 or 10 years, but Google has maintained the claimant's photo indexed.

- o The link "who we are" on the website included the email address for contact.

- o The website has been completely removed from the server, and a request has been made to Google to remove it from the search engine.

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3/11

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There is no personal data related to ***EMAIL.1. The database was deleted, along with the entire website.

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The website ceased to function in 2013 and indicates that it was only maintained as a memory. Currently, there are no registered users.

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The number of registered users was approximately 1000, where people from Barcelona posted ads to engage in activities, such as going for a run, hiking, or similar activities. There is no supporting document for the deletion of the data, as everything has been completely erased.

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On 19/02/2024, the sub-inspector of the AEPD noted that on 18/01/2024, there was an attempt to access the website www.aficionis.com again, confirming that it is not accessible.

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On 19/02/2024, the sub-inspector of the AEPD issued a report on prior actions in which it states that a search was conducted in the Google search engine using the criterion "A.A.A." and no image like the one provided by the complainant along with their complaint was located.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In Article 4 of the GDPR, it is established that:

For the purposes of this Regulation, the following shall be understood as:

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

In point 2 of the same article, the concept of “processing” of personal data is defined.

2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison, or interconnection, restriction, erasure, or destruction;

In Article 4 of the GDPR, point 7 specifies what is to be understood as the data controller. Thus, we have:

“7) ‘data controller’ or ‘controller’ means the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

In the present case, it will be analyzed that, when conducting a search on Google using the name and surname of the complainant, in the “images” section, a link to aficionis.com is indexed, a website where the complainant registered years ago and from which they wish to unsubscribe, but indicates that it is not possible, due to the fact that such an option is not offered, being responsible for such processing B.B.B..

III

Obligation Breached

Article 5.1 of the GDPR, relating to the general principles of processing, establishes that personal data shall be:

(...)

e) maintained in a manner that allows the identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be stored for longer periods as long as they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject (“storage limitation”);

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5/11

In the case at hand, as shown in the background of this agreement, when conducting a Google search using the name and surname of the claimant, the photo associated with the website aficionis.com appeared, a website where the claimant registered years ago and cannot unsubscribe.

Through the prior investigative actions carried out to clarify the reported facts, it has been learned that the person responsible for the website is B.B.B., who responded on 27/12/2023 and 17/2/2024 to the AEPD stating that the website ceased to function in 2013 and that he “kept it as a memory.”

It is important to note that the principle of data retention limitation implies that personal data can only be retained for as long as necessary to achieve the purposes for which they were collected or subsequently processed.

In this regard, the judgment of October 20, 2022, from the First Chamber of the Court of Justice of the European Union (Case Digi Távközlési és Szolgáltató Kft. against Nemzeti Adatvédelmi és Információszabadság Hatóság) has clarified the scope of this principle:

“Thus, as can be unambiguously inferred from the terms in which this provision is drafted, the principle of ‘data retention limitation’ requires that the data controller be able to demonstrate, in accordance with the principle of proactive responsibility recalled in paragraph 24 of this judgment, that personal data is retained only for the time necessary to achieve the purposes for which it was collected or for which it has been subsequently processed.

It follows that even initially lawful data processing may become incompatible with Regulation 2016/679 (LCEur 2016, 605) over time when the data is no longer necessary for the achievement of such

purposes [judgment of September 24, 2019 (TJCE 2019, 201), GC and others (Removal of links to sensitive data), C-136/17, EU:C:2019:773, paragraph 74], and that data must be deleted when those purposes have been fulfilled (see, in this regard, the judgment of May 7, 2009, Rijkeboer, C-553/07 (TJCE 2009, 119), EU:C:2009:293, paragraph 33).”

As indicated by the aforementioned judgment, it is the responsibility of the data controller, under the principle of proactive responsibility, to demonstrate compliance with the aforementioned principle of data retention limitation. Therefore, it is the data controller who must demonstrate that the mentioned data is retained only for the time necessary to achieve the purposes for which it was collected.

In the present case, and without prejudice to what may result during the instruction of this procedure, there appears to be a presumed violation of the aforementioned principle of data retention limitation due to the continued processing of the personal data of the claimant once the purpose for which it was collected has been fulfilled.

In accordance with the evidence available at this procedural moment and without prejudice to what may result from the instruction of the procedure, it is estimated that the

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6/11

The conduct of the respondent party may have violated the principle of limitation of personal data retention, as established by Article 5.1 e) of the GDPR, potentially constituting the infringement defined in Article 83.5 a) of the aforementioned Regulation 2016/679.

IV

Classification and Qualification of the Infringement

The infringement is classified under Article 83.5 of the GDPR, which considers the following as such:

“5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

The LOPDGD, for the purposes of the statute of limitations for the infringement, qualifies it in its Article 72.1 as a very serious infringement, with a limitation period of three years in this case,

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

V

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures referred to in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and Corrective Measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

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8/11

For the purpose of determining the amount of the sanction to be imposed in this case on the respondent for an infringement classified under Article 83.5 of the GDPR, an initial assessment leads to the conclusion that the sanction to be imposed on the respondent should be set at €300 in accordance with Article 58.2 of the GDPR.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO INITIATE SANCTIONING PROCEDURE against Mr. B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 5.1 e) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT Mr. C.C.C. as instructor and Ms. D.D.D. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection during the preliminary proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 5.1 e) of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of €300 (three hundred euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to Mr. B.B.B., with NIF ***NIF.1, granting him a hearing period of

ten working days to submit any allegations and present the evidence he deems appropriate. In his written allegations, he must provide his NIF and the procedure number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, he may acknowledge his responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at two hundred forty euros (€240.00), resolving the procedure with the imposition of this sanction.

Similarly, he may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at two hundred forty euros (€240.00) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at one hundred eighty euros (€180.00).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that he opts to proceed with the voluntary payment of any of the amounts indicated above (€240 or €180), he must do so by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which he is entitled.

Additionally, he must send the proof of payment to the General Subdirectorate for Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 30, 2024, the respondent has proceeded to pay the sanction in the amount of €180 by utilizing the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the initiation of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

10/11

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures," provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

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11/11

FIRST: DECLARE the termination of procedure EXP202308425, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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